STORM DAMAGE EXPERTS

12111 Forest Sage Ln, Pearland, TX 77584

832-910-7735 · stormshieldproroofing.com

CONTINGENCY AGREEMENT

SUBJECT TO INSURANCE APPROVAL

CLIENT INFORMATION

Owner name(s) _____

Street _____

City, State _____ Zip _____

Cell _____ Home _____

E-mail _____

PROJECT INFORMATION

1. Have you changed insurance companies in the last 12 months? ☐ Yes ☐ No

Prior insurance co. _____

2. Have you ever been paid by your homeowner's insurance, or had a claim that did not meet your deductible? ☐ Yes ☐ No

List what was allocated _____

3. Do you own any other residential properties? ☐ Yes ☐ No

4. Homeowners Association (HOA) management company:

_____

AUTHORIZATIONS

Property owner authorizes StormShield Pro Roofing ("SSPR") to contact the property owner's insurance company regarding any information pertaining to this claim. See the Third-Party Authorization on the back.

Property owner authorizes SSPR to send a copy of this agreement and the policy declarations page to the licensed public adjuster chosen by the property owner. The public adjuster works for the property owner under a separate contract; SSPR does not act as a public adjuster and neither pays nor receives any fee for this referral.

Public adjuster _____

CLAIM INFORMATION

Date of loss: _____

Type of loss — Roof

☐ Wind **Slope:** ☐ North ☐ South ☐ East ☐ West

☐ Hail **Slope:** ☐ North ☐ South ☐ East ☐ West

Exterior

☐ Comb. AC units Qty. _____

☐ Window beads Qty. _____

☐ Window screens Qty. _____

☐ Gutters Type _____

☐ Fence LF _____

☐ Other _____

Interior

☐ Ceiling stains _____ # of rooms

☐ Sheetrock damage _____ # of rooms

☐ Other _____

Date claim filed: _____

Insurance company: _____

Policy #: _____ ☐ **ACV** ☐ **RCV**

Claim #: _____

Adjuster: _____

Adjuster phone: _____

Appointment: _____

Deductible: $ _____ **HO initials** _____

☐ **Existing mortgage** ☐ **Own**

Mortgage company: _____

KEY TERMS — PROPERTY OWNER INITIALS EACH

_____	**Contingent on insurance approval.** This agreement is limited to the dollar amount and scope the insurance company approves. If the claim is denied, or the coverage offered is insufficient for SSPR to properly perform the work, this agreement is void and neither party owes anything.
_____	**All work by StormShield.** Property owner will not have any other company perform any of the work included in this claim; all of it will be completed by SSPR.
_____	**Joint checks, released in 5 days.** Insurance checks are issued jointly to SSPR and the property owner. Property owner will release to SSPR all insurance funds for each stage of work, including approved supplements, within 5 calendar days of receipt.
_____	**Supplements.** SSPR may file supplements for damage, code items, or cost increases the adjuster missed; approved supplements are paid to SSPR.
_____	**Cancellation after 3 days.** If the property owner cancels after the 3-day cancellation period and the claim is approved, the property owner owes $250.00 or 15% of the approved claim amount (RCV), whichever is greater, as liquidated damages, payable within 30 days. SSPR may file a mechanic's lien if unpaid. If the claim is denied, nothing is owed.

TERMS

Scope & price. By filing an insurance claim, property owner and SSPR agree that SSPR will perform the repair or replacement the insurance company authorizes, to its specifications, for all insurance proceeds, including replacement cost value (RCV), any applicable overhead and profit, and supplemental payments. Property owner's only cost is their deductible plus any upgrades or extra work they request. SSPR will do the work in a professional manner to industry standards; property owner has the final choice of materials.

Claim process. Property owner will file the claim promptly and give SSPR all claim information and documents needed for the claim and payment. SSPR will inspect the property, meet with the adjuster on the technical aspects of the repair, and provide photos, estimates and reports. SSPR does not control the insurance company's timeline and is not liable for its delays.

Changes & code items. Rotted decking or wood found during installation, non-covered work required by building code, and upgrades are an extra cost to the property owner and are binding only on a change order signed by both parties.

General. SSPR is entitled to a mechanic's lien to secure payment for the work. This is the entire agreement and may only be changed in writing signed by both parties. Texas law governs, and any legal action shall be brought in Texas state or federal courts. Notices must be in writing to the addresses on this agreement or another address a party designates in writing.

Texas deductible notice: Texas law requires a person insured under a property insurance policy to pay any deductible applicable to a claim made under the policy. It is a violation of Texas law for a seller of goods or services who reasonably expects to be paid wholly or partly from the proceeds of a property insurance claim to knowingly allow the insured person to fail to pay, or assist the insured person's failure to pay, the applicable insurance deductible.

I/We have read and fully understand this agreement, and agree to all of its terms and conditions.

Accepted by property owner: _____ Date: _____

Accepted by co-owner: _____ Date: _____

StormShield Pro Roofing representative: _____ Date: _____

NOTICE OF RIGHT TO CANCEL: You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction.

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THIRD-PARTY AUTHORIZATION

INSURANCE CLAIM — RELEASE OF INFORMATION

POLICYHOLDER (NAMED INSURED)

Named insured(s): _____

Property address: _____

City, State: _____ Zip: _____

Phone: _____ Email: _____

INSURANCE CLAIM

Insurance company: _____

Policy #: _____ Claim #: _____

Date of loss: _____ Adjuster (if assigned): _____

AUTHORIZED THIRD PARTY

StormShield Pro Roofing
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Includes all StormShield Pro Roofing owners, employees, representatives and office staff acting on the company's behalf.

AUTHORIZATION

I/we, the named insured(s) above, authorize my/our insurance company and its adjusters and representatives to discuss this claim with, and release information about this claim to, StormShield Pro Roofing, including any of its owners, employees, representatives and office staff (together, the "Authorized Third Party"), including:

- Claim status, adjuster assignment and inspection or re-inspection scheduling
- Coverage decisions, including partial or full denials and the reasons for them
- Estimates, scopes of loss, photos, inspection and engineering reports
- Supplement requests and the documents supporting them
- Payment status, including amounts issued, recoverable depreciation and release requirements

Limits of this authorization. StormShield Pro Roofing is a roofing contractor, not a public adjuster. This authorization allows the insurance company to share information with StormShield Pro Roofing and to discuss the technical aspects of the repair; it does not authorize StormShield Pro Roofing to adjust, negotiate or settle the claim on my/our behalf, and it does not change who claim payments are issued to.

Duration. This authorization remains in effect for the life of this claim, including any denial, re-inspection, supplement, reconsideration, appeal or appraisal, and for any reopened or related claim for the same loss, until I/we revoke it in writing to the insurance company. A copy, fax or electronic version of this signed authorization is as valid as the original.

_____ _____ _____
Named insured signature | Printed name | Date

_____ _____ _____
Named insured signature | Printed name | Date